

26NWCV00062 26NWCV00062

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-18

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Case Number: 26NWCV00062 Hearing Date: August 18, 2026 Dept: R

#16

GARCIA v. SOSA

CASE NO.: 26NWCV00062

HEARING: Tuesday, August
18, 2026, at 9:30 AM

Plaintiff's motion for permission to file a Lis Pendens is GRANTED.

Moving party to give notice.

Background

On January 7, 2026, Plaintiff JOVANY P. GARCIA ("Plaintiff")
filed this action against Defendants GLORIA SOSA ("Defendant") and DOES 1-10,
inclusive.

Plaintiff's complaint asserts the following causes of
action:

(1) Quiet

Title;

(2) Injunctive

Relief;

(3) Breach
of Contract; and

(4) Common
Counts

Approval to file Lis Pendens

Because Plaintiff is self-represented, the court must
approve Plaintiff's request to record the notices. Code of Civil
Procedure section 405.21 states in pertinent part:

"A notice of pendency of action shall not be recorded unless
(a) it has been signed by the attorney of record, (b) it is signed by a party
acting in propria persona and approved by a judge as provided in this section,
or (c) the action is subject to Section 405.6" [relating to actions
by a public agency in eminent domain, which has separate requirements governed
by a different statute]. (CCP § 405.21.)

The court's duty is to "confirm that an
action containing a real property claim, as defined by CCP 405.4, is
pending, and to approve a lis pendens proper in form if such a claim
is pending. The procedures for hearing and ruling upon such requests, and
for establishing a record of approval or rejection, are left to
determination by the courts. However, it is expected that an approval will be
endorsed upon or appended to the lis pendens document for the information
of the recorder and persons referring to land title records." (See Notes
to CCP § 405.21.)

A real property claim "means the cause or causes of action
in a pleading which would, if meritorious, affect (a) title to, or the right to
possession of, specific real property or (b) the use of an easement identified
in the pleading, other than an easement obtained pursuant to statute by any
regulated public utility." (CCP 405.4.)

The Court, having considered the Motion, the Memorandum of
Points and Authorities and Jovany P. Garcia's and finding that the Complaint
asserts a real property claim (Quiet Title) within the meaning of CCP § 405.4. Plaintiff
is self-represented and therefore requires judicial authorization under Code of
Civil Procedure section 405.21.

Plaintiff's motion for permission to file a Lis Pendens is GRANTED.